3787 Temporary

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other Purposes", approved October 6th, 1917, known as the "Trading with the Enemy Act" and the Amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other Purposes", approved March 28, 1918, and the Amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other Purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of "Herman Frerichs, of Germany", whom, after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is described as follows, to-wit:

> All that certain lot or piece of ground with the building and improvements thereon erected, situate in Fort Worth, State of Texas, and known as No. 1316 Pennsylvania Avenue, in said City, together with all furniture and household effects, as may be found in the premises, and the silverware belonging therein.

My reasons for the foregoing determination, order, rule and regulation are:

(a) The property is not bringing sufficient income to maintain it and is rapidly deteriorating.

(b) That an advantageous offer for the purchase of said property has been received by the Alien Property Custodian.

(c) That an attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience which should be avoided.

(d) That the said enemy has expressed his approval of the private sale of said property at the price offered.

WARREN G HARDING

THE WHITE HOUSE,
Feby. 14th, 1923.

[No. 3787.]

GOVERNMENT PRINTING OFFICE